Rigoberto Cabrera

Federal Register No. 33513-018

Federal Correctional Institution Miami

15801 S.W. 137th Avenue

Miami, Florida 33177

June 22, 2026

Office of the Clerk of Court

United States District Court

Southern District of Florida

400 North Miami Avenue

Miami, Florida 33128

Re: Cabrera v. Healthcare Systems of America–Florida LLC, No. 1:26-cv-23693-MFE

Dear Clerk of Court:

I am the Plaintiff in the above-captioned civil action, proceeding pro se while confined at Federal Correctional Institution Miami. Enclosed herewith, please find the following documents filed pursuant to the Court's Order to Show Cause dated June 1, 2026 (D.E. 4), which directed Plaintiff to demonstrate that this Court possesses subject-matter jurisdiction over this action pursuant to 28 U.S.C. § 1332:

1. FIRST AMENDED COMPLAINT — Plaintiff's First Amended Complaint, which corrects the jurisdictional allegations identified in the Order to Show Cause by setting forth with specificity the citizenship of all parties, the sole membership of Defendant Healthcare Systems of America–Florida LLC, and the basis for diversity jurisdiction under 28 U.S.C. § 1332(a)(2).

2. PLAINTIFF'S RESPONSE TO ORDER TO SHOW CAUSE WITH INCORPORATED MEMORANDUM OF LAW — Plaintiff's written response demonstrating that complete diversity of citizenship exists between Plaintiff, a citizen of the Republic of Cuba, and Defendant, a citizen of Nevada and California, and that the amount in controversy exceeds $75,000 exclusive of interest and costs. The Response addresses both jurisdictional defects identified by the Court.

3. DECLARATION OF RIGOBERTO CABRERA WITH EXHIBITS A AND B — Plaintiff's Declaration under 28 U.S.C. § 1746, submitted in support of the Response to Order to Show Cause. Attached to the Declaration as Exhibit A is a true and correct copy of the complete Complaint (Document 1, all 7 pages) filed in Maxfield v. Healthcare Systems of America–Florida LLC, No. 0:26-cv-61343-MD (S.D. Fla. May 5, 2026). Attached as Exhibit B is a true and correct copy of the complete Answer and Affirmative Defenses (Document 14, all 7 pages) filed in the same action on June 11, 2026.

4. PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE — Plaintiff's request that the Court take judicial notice, pursuant to Federal Rule of Evidence 201(b) and (c)(2), of five public records bearing on the jurisdictional facts at issue: the Florida Department of State entity record for Defendant; the complaint and a supporting declaration filed in Sarian v. Paronyan, No. 26STCV05675 (Cal. Super. Ct., L.A. Cnty.); and the Maxfield complaint and Answer already attached as Exhibits A and B to the Declaration.

These documents are submitted by institutional legal mail from Federal Correctional Institution Miami. Plaintiff is unable to file through the CM/ECF system and respectfully requests that the Clerk file-stamp all documents upon receipt, retain the originals, and return a file-stamped copy to Plaintiff using the enclosed self-addressed envelope.

Thank you for your attention to this matter.

Respectfully submitted,

Rigoberto Cabrera

Plaintiff, Pro Se

Federal Register No. 33513-018

Federal Correctional Institution Miami

15801 S.W. 137th Avenue

Miami, Florida 33177

RIGOBERTO CABRERA,

Plaintiff,

v.

HEALTHCARE SYSTEMS OF AMERICA-FLORIDA LLC, d/b/a PALMETTO GENERAL HOSPITAL; HSA PGH, LLC, d/b/a PALMETTO GENERAL HOSPITAL; and JOHN DOE, an unidentified MRI Technologist,

Defendants.

_____/

Case No.:
1:26-cv-23693-MFE

FIRST AMENDED COMPLAINT FOR BATTERY

AND DEMAND FOR JURY TRIAL

Plaintiff Rigoberto Cabrera, proceeding pro se, files this First Amended Complaint in response to this Court's Order to Show Cause dated June 1, 2026 (D.E. 4), and alleges as follows:

NATURE OF THE ACTION

1. This is an action for battery arising from the intentional administration of a contrast-agent injection to Plaintiff over his express verbal objection while Plaintiff was in custodial restraints and under the control of federal correctional officers.
2. Plaintiff repeatedly and expressly communicated that he did not consent to the contrast injection before it was administered.

3. Despite Plaintiff's clear and unequivocal refusal, Defendants intentionally proceeded with the injection following consultation with outside authority figures, without ever obtaining Plaintiff's consent.

4. This action sounds in intentional tort and bodily autonomy. It does not arise from negligent medical treatment.

JURISDICTION AND VENUE

5. This Court has subject matter jurisdiction pursuant to 28 U.S.C. § 1332(a)(2) (diversity of citizenship).

6. Plaintiff Rigoberto Cabrera is a citizen and national of the Republic of Cuba. He is not a citizen of any State of the United States.

7. Plaintiff is not, and has never been, a lawful permanent resident of the United States within the meaning of 28 U.S.C. § 1332(a). Plaintiff is presently subject to removal proceedings as a direct consequence of the federal conviction underlying his incarceration, and he holds no immigration status conferring lawful permanent residence. Accordingly, the statutory limitation in 28 U.S.C. § 1332(a)—which withholds jurisdiction only over an action between a citizen of a State and an alien lawfully admitted for permanent residence who is domiciled in that same State—does not apply to this action, regardless of where Plaintiff resided or was domiciled before his incarceration.

8. Healthcare Systems of America–Florida LLC ("HSAF LLC") is a limited liability company organized under the laws of the State of Nevada—not Florida—and is registered to transact business in Florida. Fla. Dep't of State, Div. of Corps., Entity Records, Healthcare Systems of America–Florida LLC, Doc. No. M24000012582 (filed Oct. 2, 2024), https://search.sunbiz.org (reflecting State: NV; Principal Address: 505 N. Brand Blvd., Ste. 1200, Glendale, CA 91203; Authorized Manager: Sarian, Mike). For purposes of 28 U.S.C. § 1332(a)(2), an LLC's citizenship is determined solely by the citizenship of each of its members; the LLC's state of organization and registration are irrelevant to that

determination. Rolling Greens MHP, L.C. v. Comcast SCH Holdings, L.L.C., 374 F.3d 1020, 1022 (11th Cir. 2004).

9. The sole member of Healthcare Systems of America–Florida LLC is Healthcare Systems of America Corp. ("HSA Corp."), a Nevada corporation with its principal place of business at 505 North Brand Boulevard, Suite 1200, Glendale, California. Michael Sarian founded Healthcare Systems of America Corp. in September 2024 for the specific purpose of owning and operating hospitals outside California. Decl. of Mike Sarian ¶¶ 4, 20, Sarian v. Paronyan, No. 26STCV05675 (Cal. Super. Ct., L.A. Cnty., filed Feb. 24, 2026) ("Sarian Decl."). Healthcare Systems of America–Florida LLC was registered in Florida one month later, in October 2024, at that same Glendale, California address. Fla. Dep't of State, supra. Healthcare Systems of America Corp. "owns and operates eight hospitals outside California," including the five South Florida hospitals operated through Healthcare Systems of America–Florida LLC. Compl. ¶ 15, Sarian v. Paronyan, No. 26STCV05675 (Cal. Super. Ct., L.A. Cnty., filed Feb. 24, 2026) ("Sarian Compl.").

10. Healthcare Systems of America Corp. is wholly owned by the Sarian Family Trust. Sarian Compl. ¶¶ 13, 15. The Sarian Family Trust is a California trust with its principal place of administration in Los Angeles County, California, and holds one thousand shares—one hundred percent of the issued and outstanding shares—of Healthcare Systems of America Corp. Id. ¶ 13. Michael Sarian, an individual residing in Los Angeles County, California, is the trustee of the Sarian Family Trust and serves as the sole chief executive officer and director of Healthcare Systems of America Corp. Sarian Compl. ¶ 10; Sarian Decl. ¶ 6.

11. No other person holds any ownership interest in Healthcare Systems of America Corp. Aramais Paronyan, who holds minority stakes in two affiliated entities, "has never had any ownership interest or involvement in" Healthcare Systems of America Corp. Sarian Decl. ¶ 20. Faisal Gill, who currently serves as chief executive officer of the HSA enterprise, "does not own shares in any of the companies." Id. ¶ 11.

12. Because Healthcare Systems of America Corp. is a Nevada corporation with its principal place of business in California, it is a citizen of both Nevada and California. 28 U.S.C. § 1332(c)(1). Healthcare Systems of America–Florida LLC, whose sole member is Healthcare Systems of America Corp., is therefore a citizen of Nevada and California for purposes of 28 U.S.C. § 1332(a)(2). Rolling Greens, 374 F.3d at 1022. Neither Nevada nor California is the nation of citizenship or country of allegiance of Plaintiff Rigoberto Cabrera, who is a citizen and national of the Republic of Cuba. Complete diversity of citizenship therefore exists between Plaintiff and Defendant Healthcare Systems of America–Florida LLC.

13. Defendant HSA PGH, LLC, d/b/a Palmetto General Hospital, is a wholly owned subsidiary of Defendant Healthcare Systems of America–Florida LLC and is named as a Defendant in the alternative pursuant to Fed. R. Civ. P. 8(d)(2)–(3). The citizenship of HSA PGH, LLC, whose sole member is Healthcare Systems of America–Florida LLC, flows directly from the citizenship of that parent entity—Nevada and California—which are the same states established in Paragraph 12 above. Rolling Greens, 374 F.3d at 1022. Complete diversity of citizenship therefore exists between Plaintiff and Defendant HSA PGH, LLC as well.

14. The amount in controversy exceeds $75,000, exclusive of interest and costs.

15. Venue is proper in the Southern District of Florida pursuant to 28 U.S.C. § 1391(b)(2) because all events and omissions giving rise to this action occurred in Miami-Dade County, Florida.

PARTIES

16. Plaintiff Rigoberto Cabrera is a federal inmate presently confined at Federal Correctional Institution Miami, 15801 S.W. 137th Avenue, Miami, Florida 33177, under Federal Register No. 33513-018.

17. Defendant Healthcare Systems of America–Florida LLC is a limited liability company organized under the laws of Nevada and registered to transact business in Florida.

Defendant is the parent entity that owns Healthcare Systems of America–Florida LLC and, through it, operates Palmetto General Hospital located at 2001 W. 68th Street, Hialeah, Florida 33016. Healthcare Systems of America Corp.—a Nevada corporation whose sole shareholder is the Sarian Family Trust (Michael Sarian, trustee, residing in Los Angeles County, California)—is the sole member of Healthcare Systems of America–Florida LLC.

18. Defendant HSA PGH, LLC, d/b/a Palmetto General Hospital, is the subsidiary entity that directly operates Palmetto General Hospital. Plaintiff names HSA PGH, LLC as a Defendant in the alternative to Defendant Healthcare Systems of America–Florida LLC because Plaintiff cannot determine, absent discovery, which entity formally employed Defendant John Doe at the time of the events described herein. HSA PGH, LLC is a wholly owned subsidiary of Healthcare Systems of America–Florida LLC, and its citizenship is therefore identical to that of its parent entity.

19. Defendant John Doe was, at all times relevant to this action, an MRI technologist employed by or acting as an agent of Defendant Healthcare Systems of America-Florida LLC and/or Defendant HSA PGH, LLC, each d/b/a Palmetto General Hospital.

20. Defendant John Doe is identified in hospital radiology records as technologist “Tech JCM33.” Plaintiff presently lacks knowledge of this individual's true legal name and will seek leave to amend to substitute his or her true identity upon completion of discovery.

GENERAL ALLEGATIONS

21. On March 26, 2025, Plaintiff was transported from Federal Correctional Institution Miami to Palmetto General Hospital for a magnetic resonance imaging (MRI) study.

22. Plaintiff remained in federal custody throughout the entirety of the hospital encounter.

23. Prior to the injection at issue, Plaintiff expressly communicated to the MRI technologist identified as “Tech JCM33” that he did not want contrast material injected into his body.

24. Plaintiff communicated specific concerns regarding his medical history and expressly refused the proposed injection.

25. Upon hearing Plaintiff's objection, the MRI technologist initially declined to proceed with the injection.

26. A Bureau of Prisons correctional officer then intervened and directed the MRI technologist to contact Bureau of Prisons medical personnel rather than honor Plaintiff's refusal.

27. The MRI technologist thereafter contacted Bureau of Prisons physician Dr. Inerio Alarcon by telephone to discuss Plaintiff's case.

28. Plaintiff did not consent to the injection during or after that telephone call.

29. Following the call, Plaintiff again communicated, clearly and unambiguously, that he did not want the injection administered.

30. Plaintiff never affirmatively agreed to the injection, whether verbally, in writing, or through voluntary conduct.

31. At all times relevant to this action, Plaintiff was:

    a. incarcerated as a federal inmate;

    b. under the custodial supervision and physical control of federal correctional officers;

    c. not free to leave the medical facility or the examination room;

    d. accompanied by and subject to the directions of armed correctional officers; and

    e. subject to the coercive institutional authority of the Bureau of Prisons.

32. Plaintiff's failure to physically resist medical personnel while under custodial supervision and physical control by armed federal officers did not constitute consent to the injection.

33. Following the telephone consultation with Dr. Alarcon, Defendant John Doe intentionally injected contrast material into Plaintiff's body despite Plaintiff's repeated, express refusals.

34. The administration of the injection was intentional, deliberate, and purposeful. It was not accidental or inadvertent.

35. Following the injection, Plaintiff experienced adverse physical symptoms and significant emotional distress.

36. Plaintiff subsequently required additional medical evaluation and hospitalization as a result of the incident.

37. Plaintiff suffered bodily pain, emotional distress, fear, humiliation, loss of dignity, and physical injury as a direct result of the unconsented touching.

38. The official Palmetto General Hospital radiology records contain facially contradictory documentation regarding whether contrast was administered during the subject MRI examination.

39. Specifically, certain portions of the radiology documentation contain language indicating the study was performed "without intravenous contrast," while another section of the same records reflects clinical findings described as occurring "following contrast administration."

40. These internal contradictions in the hospital's own records are consistent with and corroborate Plaintiff's allegation that contrast material was in fact injected into his body.

COUNT I

BATTERY

(Against Defendant John Doe)

41. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 40 as if fully set forth herein.

42. Defendant John Doe intentionally caused harmful and offensive physical contact with Plaintiff by injecting contrast material into Plaintiff's body.

43. Plaintiff expressly refused and objected to the injection before and during the events at issue.

44. Plaintiff did not, at any time, consent to the injection—either expressly, impliedly, or through conduct.

45. The physical contact was harmful and offensive in that it was an unconsented intrusion into Plaintiff's bodily integrity.

46. Defendant John Doe intentionally proceeded with the injection despite Plaintiff's express and repeated refusals.

47. As a direct and proximate result of Defendant John Doe's commission of battery, Plaintiff suffered and continues to suffer bodily injury, physical pain, emotional distress, humiliation, medical complications, loss of dignity, and other compensable damages.

WHEREFORE, Plaintiff Rigoberto Cabrera demands judgment against Defendant John Doe for:

a. compensatory damages in an amount to be determined at trial;

b. costs of this action; and

c. such other and further relief as this Court deems just and proper.

Plaintiff demands trial by jury on all issues so triable pursuant to Fed. R. Civ. P. 38.

COUNT II

BATTERY — RESPONDEAT SUPERIOR

(Against Defendants Healthcare Systems of America-Florida LLC and HSA PGH, LLC, in the Alternative)

48. Plaintiff re-alleges and incorporates by reference paragraphs 1 through 47 as if fully set forth herein.

49. At all times relevant to this action, Defendant John Doe was an employee and/or agent of Defendant Healthcare Systems of America-Florida LLC and/or Defendant HSA PGH, LLC, acting within the course and scope of his or her employment or agency. Plaintiff is presently unable to determine, absent discovery, which of these two Defendants formally employed Defendant John Doe, and Plaintiff therefore pleads this Count in the alternative against both pursuant to Fed. R. Civ. P. 8(d)(2)–(3).

50. The administration of injections and performance of MRI-related procedures, including pre-imaging preparations and contrast administration, fell within the ordinary and assigned duties of Defendant John Doe as an MRI technologist at Palmetto General Hospital.

51. The administration of the injection was an authorized job function; it was the absence of Plaintiff's consent that rendered the conduct tortious under Florida law.

52. Defendant Healthcare Systems of America-Florida LLC and/or Defendant HSA PGH, LLC is, in the alternative, vicariously liable under the doctrine of respondeat superior for the battery committed by Defendant John Doe, its employee and/or agent, within the scope of that employment or agency.

53. As a direct and proximate result of the battery, Plaintiff suffered and continues to suffer bodily injury, physical pain, emotional distress, humiliation, medical complications, loss of dignity, and other compensable damages.

WHEREFORE, Plaintiff Rigoberto Cabrera demands judgment against Defendant Healthcare Systems of America-Florida LLC and/or Defendant HSA PGH, LLC for:

a. compensatory damages in an amount to be determined at trial;

b. costs of this action; and

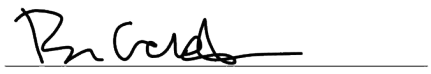
c. such other and further relief as this Court deems just and proper.

Plaintiff demands trial by jury on all issues so triable pursuant to Fed. R. Civ. P. 38.

DEMAND FOR JURY TRIAL

Plaintiff Rigoberto Cabrera hereby demands a trial by jury on all issues so triable pursuant to Federal Rule of Civil Procedure 38(b).

Respectfully submitted,



RIGOBERTO CABRERA
Plaintiff, Pro Se
Federal Register No. 33513-018
Federal Correctional Institution Miami
15801 S.W. 137th Avenue
Miami, Florida 33177

RIGOBERTO CABRERA,

Plaintiff,

v.

HEALTHCARE SYSTEMS OF AMERICA-FLORIDA LLC, d/b/a PALMETTO GENERAL HOSPITAL; HSA PGH, LLC, d/b/a PALMETTO GENERAL HOSPITAL; and JOHN DOE, an unidentified MRI Technologist,

Defendants.

_____/

Case No.:
1:26-cv-23693-MFE

PLAINTIFF'S RESPONSE TO ORDER TO SHOW CAUSE

AND MEMORANDUM OF LAW IN SUPPORT OF SUBJECT-MATTER JURISDICTION

Plaintiff Rigoberto Cabrera, proceeding pro se, respectfully submits this Response to the Court's Order to Show Cause dated June 1, 2026 (D.E. 4, the "OSC"), and shows the Court that, for the reasons set forth below, this Court possesses subject-matter jurisdiction over this action pursuant to 28 U.S.C. § 1332(a)(2). Filed concurrently herewith are: (1) a First Amended Complaint that corrects the two pleading defects identified in the OSC with verified, citable facts; (2) Plaintiff's Declaration authenticating Exhibits A through E; and (3) Plaintiff's Request for Judicial Notice of each exhibit as a public record of a government agency or court. Plaintiff respectfully requests that the Court discharge the OSC, accept the First Amended Complaint, and allow this action to proceed.

STATEMENT OF FACTS

Plaintiff's original Complaint alleged that this Court has diversity jurisdiction under 28 U.S.C. § 1332(a)(2) because Plaintiff is a Cuban national who is not a lawful permanent resident of the United States, and because Defendant Healthcare Systems of America-Florida LLC is "organized under the laws of Florida." (Compl. ¶¶ 5–8, 12.)

The Court's OSC identified two defects in those allegations. First, the Court observed that Complaint ¶¶ 8 and 12 allege only that Defendant is "organized under the laws of Florida" — a conclusory allegation insufficient to establish the citizenship of a limited liability company, whose citizenship for diversity purposes is determined by the citizenship of each of its members, not its state of organization. Rolling Greens MHP, L.P. v. Comcast SCH Holdings L.L.C., 374 F.3d 1020, 1022 (11th Cir. 2004) (per curiam). Second, the Court took judicial notice of the Presentence Investigation Report ("PSR") from Plaintiff's criminal case, United States v. Cabrera, No. 1:13-cr-20339-JIC (S.D. Fla.), which reflects that Plaintiff was domiciled in Florida before his incarceration, and the OSC questioned whether that pre-incarceration domicile defeats diversity — without addressing Complaint ¶ 7's separate allegation that Plaintiff is not a lawful permanent resident.

Plaintiff has since confirmed, and alleges in the First Amended Complaint, that he has never held lawful permanent resident ("LPR") status and is presently subject to removal proceedings as a direct consequence of the federal conviction underlying his incarceration.

Sworn court filings and public government records from related judicial proceedings establish—without inference or speculation—the complete membership and citizenship of Healthcare Systems of America–Florida LLC. In September 2024, Michael Sarian founded Healthcare Systems of America Corp. ("HSA Corp."), a Nevada corporation headquartered at 505 North Brand Boulevard, Suite 1200, Glendale, California, for the specific purpose of owning and operating hospitals outside California. Decl. of Mike Sarian ¶¶ 4, 20, Sarian v. Paronyan, No. 26STCV05675 (Cal. Super. Ct., L.A. Cnty., filed Feb. 24, 2026) ("Sarian Decl."). Healthcare

Systems of America–Florida LLC was registered in Florida one month later, in October 2024, at that same Glendale, California address, as a Nevada limited liability company. Fla. Dep't of State, Div. of Corps., Entity Records, Healthcare Systems of America–Florida LLC, Doc. No. M24000012582 (filed Oct. 2, 2024). HSA Corp. "owns and operates eight hospitals outside California," including the five South Florida hospitals operated through Healthcare Systems of America–Florida LLC. Compl. ¶ 15, Sarian v. Paronyan, No. 26STCV05675 ("Sarian Compl."). HSA Corp. is wholly owned by the Sarian Family Trust, a California trust with its principal place of administration in Los Angeles County, California, which holds one hundred percent of HSA Corp.'s shares. Sarian Compl. ¶¶ 13, 15. Michael Sarian, an individual residing in Los Angeles County, California, is the trustee of the Sarian Family Trust, the sole chief executive officer and director of HSA Corp., and the personal guarantor of all HSA Corp. acquisition debt. Sarian Compl. ¶ 10; Sarian Decl. ¶ 6. No other person holds any ownership interest in HSA Corp.: Aramais Paronyan, a minority shareholder of two affiliated entities, "has never had any ownership interest or involvement in" HSA Corp., Sarian Decl. ¶ 20, and Faisal Gill, the current chief executive officer, "does not own shares in any of the companies," id. ¶ 11. These facts are established by sworn declarations filed under penalty of perjury in California Superior Court proceedings by Quinn Emanuel Urquhart & Sullivan, LLP on behalf of Michael Sarian himself. An independent concurrent federal proceeding in this District further confirms that Healthcare Systems of America–Florida LLC is "a foreign limited liability company registered to conduct business throughout the State of Florida"—expressly distinguished from two Florida-organized sister entities described in the same complaint as "organized and existing under and by virtue of the laws of Florida." Compl. ¶¶ 5–7, Maxfield v. Healthcare Sys. of Am.–Fla. LLC, No. 0:26-cv-61343-MD (S.D. Fla. May 5, 2026) (Doc. 1) (Exhibit A to Cabrera Decl.). Defendants' own retained counsel confirmed this characterization when they admitted in their Answer in Maxfield that Healthcare Systems of America–Florida LLC is "a limited liability company registered to do business in Florida," without asserting it is organized under Florida law. Answer ¶ 7, Maxfield v.

Healthcare Sys. of Am.–Fla. LLC, No. 0:26-cv-61343-MD (S.D. Fla. June 11, 2026) (Doc. 14) (Exhibit B to Cabrera Decl.).

LEGAL STANDARD

Federal courts are courts of limited jurisdiction, and the party invoking diversity jurisdiction bears the burden of affirmatively and distinctly pleading the citizenship of every party. Travaglio v. Am. Express Co., 735 F.3d 1266, 1268 (11th Cir. 2013). For a limited liability company, that means pleading the citizenship of each member; the LLC's state of organization and principal place of business are legally irrelevant to its citizenship. Rolling Greens, 374 F.3d at 1022.

Where a complaint's jurisdictional allegations are deficient but curable, leave to amend should be freely given. Fed. R. Civ. P. 15(a)(2) (“The court should freely give leave when justice so requires.”). No Defendant has appeared or been served in this action, so no party will be prejudiced by amendment, and Plaintiff offers the First Amended Complaint in direct response to the Court's own OSC.

ARGUMENT

I. Plaintiff's Confirmed Status as a Non-Permanent-Resident Alien Independently Satisfies § 1332(a)(2), Regardless of His Pre-Incarceration Domicile.

Section 1332(a)(2) extends diversity jurisdiction to actions between “citizens of a State and citizens or subjects of a foreign state,” subject to one narrow exception: the statute withholds jurisdiction over “an action between citizens of a State and citizens or subjects of a foreign state who are lawfully admitted for permanent residence in the United States and are domiciled in the same State.” 28 U.S.C. § 1332(a). That exception applies only when the foreign national is an LPR. It has no application to a foreign national, like Plaintiff, who has never held LPR status.

Two Eleventh Circuit decisions establish this framework. In Kaare Foy v. Schantz, Schatzman & Aaronson, P.A., 108 F.3d 1347 (11th Cir. 1997), the court held that “lawfully

admitted for permanent residence" refers to a specific, official immigration status — not how long a person has lived somewhere, paid taxes there, or intended to remain. Id. at 1349–50. The Eleventh Circuit reversed a dismissal where the plaintiff had lived and worked in Florida for four years but had never been granted LPR status, holding that without that status, the domicile-based exception simply does not apply. Id.

In Roberto Hung Cavalieri v. Avior Airlines C.A., 25 F.4th 843 (11th Cir. 2022), the court explained that the Federal Courts Jurisdiction and Venue Clarification Act of 2011 changed how LPRs are treated under § 1332: an LPR is no longer deemed a citizen of the state where domiciled, but is instead treated as a "citizen[] or subject[] of a foreign state," subject to the same-state-domicile exception described above. Id. at 849–50 (citing Tagger v. Strauss Grp. Ltd., 951 F.3d 124, 125, 127 (2d Cir. 2020)). Foy's holding on what counts as LPR status remains good law and continues to control how courts apply that exact statutory phrase today.

Read together, Foy and Cavalieri establish that the same-state-domicile exception is triggered only by actual LPR status — not by how long a foreign national lived in a state, and not by where that person was domiciled before some intervening event such as incarceration. Plaintiff has confirmed, and alleges in the First Amended Complaint, that he has never held LPR status and presently faces removal proceedings as a direct consequence of his conviction. (FAC ¶ 7.) Because Plaintiff is not an LPR, the domicile-based exception the Court's OSC raised — based on the PSR's finding of pre-incarceration Florida domicile — does not apply to him at all. His domicile before incarceration, whatever it was, is not a fact that bears on jurisdiction under the current version of § 1332(a). This ground, standing alone, resolves the first defect identified in the OSC.

II. The First Amended Complaint Cures the LLC-Citizenship Defect With Verified Facts, Not Conclusions.

The OSC correctly identifies that an LLC's citizenship for diversity purposes is the citizenship of each of its members, not its state of organization. Rolling Greens, 374 F.3d at 1022. This Court has applied that rule to require that a party invoking diversity jurisdiction plead specific

facts establishing each member's citizenship, not legal conclusions. In Silver Crown Invs., LLC v. Team Real Estate Mgmt., LLC, 349 F. Supp. 3d 1316 (S.D. Fla. 2018) (Martinez, J.), the court held that "it is the citizenship of an LLC's members—not its managers—that is relevant" to the diversity analysis, id. at 1322–24 (citing Travaglio, 735 F.3d at 1268, and Golden v. Jericho All-Weather Opportunity Fund, LLP, 2017 WL 3738704, at *1 (S.D. Fla. 2017) (Scola, J.)), and that a pleading survives a jurisdictional challenge only once it traces and alleges the actual citizenship of every member. Id.

Plaintiff's original Complaint did not meet that standard—it alleged only that Defendant was "organized under the laws of Florida," the precise kind of state-of-organization allegation that Rolling Greens forecloses. The First Amended Complaint corrects this with an affirmative, fully documented membership trace, not a different conclusion.

The First Amended Complaint establishes three verified facts in sequence. First, Healthcare Systems of America–Florida LLC is a Nevada limited liability company, not a Florida entity. (FAC ¶ 8.) That fact is established by the public records of the Florida Department of State, Division of Corporations, which reflect "NV" as the state of organization and Nevada as the domicile of the entity. Fla. Dep't of State, Div. of Corps., Entity Records, Healthcare Systems of America–Florida LLC, Doc. No. M24000012582 (filed Oct. 2, 2024). Second, the sole member of Healthcare Systems of America–Florida LLC is Healthcare Systems of America Corp., a Nevada corporation with its principal place of business at 505 North Brand Boulevard, Suite 1200, Glendale, California —the same address at which Healthcare Systems of America–Florida LLC is registered. (FAC ¶ 9.) Healthcare Systems of America Corp. was formed in September 2024 specifically to own and operate hospitals outside California, Sarian Decl. ¶¶ 4, 20, and it "owns and operates eight hospitals outside California," including the five South Florida hospitals operated through Healthcare Systems of America–Florida LLC, Sarian Compl. ¶ 15. Third, Healthcare Systems of America Corp. is wholly and exclusively owned by the Sarian Family Trust—a California trust with its principal place of administration in Los Angeles County, California—which holds one hundred percent of its shares. (FAC ¶ 10.) Michael Sarian, an individual residing in Los Angeles

County, California, is the trustee of the Sarian Family Trust, the sole chief executive officer and director of Healthcare Systems of America Corp., and the personal guarantor of all HSA Corp. acquisition debt. Id.; Sarian Compl. ¶ 10; Sarian Decl. ¶ 6.

No competing ownership interest exists anywhere in this chain. (FAC ¶ 11.) Aramais Paronyan, who holds minority stakes in two affiliated entities, "has never had any ownership interest or involvement in" Healthcare Systems of America Corp. Sarian Decl. ¶ 20. Faisal Gill, who currently serves as Healthcare Systems of America Corp.'s chief executive officer, "does not own shares in any of the companies." Id. ¶ 11. These facts appear in sworn declarations filed under penalty of perjury in a California Superior Court proceeding by Quinn Emanuel Urquhart & Sullivan, LLP on behalf of Michael Sarian himself. They are primary-source admissions by the founder and 100% beneficial owner of Healthcare Systems of America Corp., corroborated by his company's own organizational exhibits introduced in that same proceeding. Because Healthcare Systems of America Corp. is a Nevada corporation with its principal place of business in California, it is a citizen of Nevada and California. 28 U.S.C. § 1332(c)(1). Healthcare Systems of America–Florida LLC, whose sole member is Healthcare Systems of America Corp., is therefore also a citizen of Nevada and California. Rolling Greens, 374 F.3d at 1022. Neither Nevada nor California is the nation of citizenship of Plaintiff, who is a citizen and national of the Republic of Cuba. (FAC ¶ 12.) This is not a negative information-and-belief allegation—it is a complete, affirmative membership trace from the defendant LLC through its sole member, that member's 100% shareholder (a California trust), and the trustee of that trust (a California resident), terminating at the verified conclusion that no link in the chain produces Florida or Cuban citizenship.

A concurrent federal proceeding in this District provides independent corroboration that Healthcare Systems of America–Florida LLC is a foreign (non-Florida) entity. In Maxfield v. Healthcare Systems of America–Florida LLC, No. 0:26-cv-61343-MD (S.D. Fla.), filed May 5, 2026, another plaintiff's counsel described Healthcare Systems of America–Florida LLC as "a foreign limited liability company registered to conduct business throughout the State of Florida,"

Compl. ¶ 7 (Doc. 1) (Exhibit A to Cabrera Decl.), expressly distinguishing it from two sister entities—HSA FMC LLC and HSA NSMC LLC—described in the same complaint as "Florida limited liability compan[ies] organized and existing under and by virtue of the laws of Florida," id. ¶¶ 5–6. Defendants' own retained counsel admitted in the Maxfield Answer that Healthcare Systems of America–Florida LLC is "a limited liability company registered to do business in Florida"—confirming its status as a non-Florida entity without asserting it is organized under Florida law. Answer ¶ 7, Maxfield v. Healthcare Sys. of Am.–Fla. LLC, No. 0:26-cv-61343-MD (S.D. Fla. June 11, 2026) (Doc. 14) (Exhibit B to Cabrera Decl.). This judicial admission, made by Defendants' own attorneys in a live proceeding in this Court, confirms what the Florida Department of State records and Sarian's sworn declaration already establish.

The First Amended Complaint also names HSA PGH, LLC, d/b/a Palmetto General Hospital, as a Defendant in the alternative under Fed. R. Civ. P. 8(d)(2)–(3). HSA PGH, LLC is a wholly owned subsidiary of Healthcare Systems of America–Florida LLC, and its citizenship therefore flows directly from that parent entity—Nevada and California—for the same reasons set forth above. (FAC ¶ 13.) Plaintiff pleads the two LLC Defendants in the alternative because, absent discovery, Plaintiff cannot yet determine which entity formally employed the MRI technologist identified in the record as "Tech JCM33." This alternative pleading is authorized by Rule 8 and does not disturb the jurisdictional analysis, since both entities' citizenship rises and falls together.

III. In the Alternative, the Court May Permit Limited Jurisdictional Discovery.

Should the Court conclude that the verified facts above are not yet sufficient to resolve Defendant's citizenship without further development, the Eleventh Circuit has approved remanding or otherwise permitting "additional fact-finding to establish complete diversity of citizenship" rather than dismissing an action outright when the existing record is incomplete. Payroll Mgmt., Inc. v. Lexington Ins. Co., 815 F.3d 1293, 1297–99 & n.6 (11th Cir. 2016). Plaintiff respectfully requests that, if the Court is not satisfied that the First Amended Complaint's jurisdictional allegations are sufficient on their face, the Court permit limited jurisdictional

discovery directed to Defendants' membership and citizenship before any dismissal, rather than dismissing the action without that opportunity. Plaintiff is incarcerated, proceeding pro se, and without access to the corporate records Defendants control; the information needed to identify Defendants' members lies uniquely within Defendants' possession.

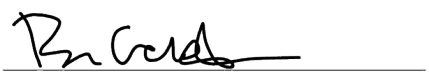
IV. The Amendment Is Properly Before the Court.

Leave to amend should be freely given "when justice so requires." Fed. R. Civ. P. 15(a)(2). That standard is easily met here. No Defendant has appeared or been served in this action, which remains in its earliest procedural stage; no party will suffer any prejudice from the amendment. The First Amended Complaint is offered in direct response to this Court's own OSC and is narrowly tailored to correct the two defects the Court identified, plus the related party-identification issue described above. To the extent the Court concludes that amendment as a matter of course under Rule 15(a)(1) is unavailable in this pre-service posture, Plaintiff respectfully requests leave to amend under Rule 15(a)(2) for the same reasons.

CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court discharge the Order to Show Cause, accept the First Amended Complaint filed concurrently herewith, and allow this action to proceed under 28 U.S.C. § 1332(a)(2). In the alternative, Plaintiff respectfully requests leave to conduct limited jurisdictional discovery before any dismissal.

Respectfully submitted,



RIGOBERTO CABRERA
Plaintiff, Pro Se
Federal Register No. 33513-018
Federal Correctional Institution Miami

15801 S.W. 137th Avenue
Miami, Florida 33177

RIGOBERTO CABRERA,

Plaintiff,

v.

HEALTHCARE SYSTEMS OF AMERICA-FLORIDA LLC, d/b/a PALMETTO GENERAL HOSPITAL; HSA PGH, LLC, d/b/a PALMETTO GENERAL HOSPITAL; and JOHN DOE, an unidentified MRI Technologist,

Defendants.

_____/

Case No.:
1:26-cv-23693-MFE

DECLARATION OF RIGOBERTO CABRERA

IN SUPPORT OF PLAINTIFF'S RESPONSE TO ORDER TO SHOW CAUSE

I, Rigoberto Cabrera, declare under penalty of perjury pursuant to 28 U.S.C. § 1746 that the following is true and correct to the best of my personal knowledge and belief:

1. I am the Plaintiff in the above-captioned action. I am currently confined at Federal Correctional Institution Miami, 15801 S.W. 137th Avenue, Miami, Florida 33177, under Federal Register No. 33513-018. I submit this declaration in support of Plaintiff's Response to the Court's Order to Show Cause (D.E. 4) and in support of Plaintiff's Request for Judicial Notice.
2. I have personal knowledge of the facts stated in this declaration. I obtained the public records, court filings, and database records described below through legal research

conducted on my behalf. True and correct copies of the documents I am able to attach to this declaration as physical exhibits are attached hereto as Exhibits A and B. All other publicly available sources identified herein are cited by their official URL or case citation and are accessible through the Internet and the relevant court's electronic filing system.

Florida Department of State — Entity Records for Healthcare Systems of America–Florida LLC

3. The Florida Department of State, Division of Corporations, maintains publicly available entity records for Healthcare Systems of America–Florida LLC (Document No. M24000012582, filed October 2, 2024). Those records are accessible through the Division of Corporations' online database at https://search.sunbiz.org. The records reflect the following facts: (a) the entity is organized under the laws of the State of Nevada; (b) it is registered to transact business in Florida; (c) its principal address is 505 North Brand Boulevard, Suite 1200, Glendale, California 91203; and (d) the sole Authorized Manager identified in those records is Mike Sarian, at the same Glendale, California address. These records are not attached as a physical exhibit because they constitute a publicly available government database record for which judicial notice is sought in the accompanying Request for Judicial Notice.

Complaint, Sarian v. Paronyan, No. 26STCV05675 (Cal. Super. Ct., L.A. Cnty.)

4. On February 24, 2026, Michael Sarian, Healthcare Systems of America Corp., American Healthcare Systems Corp., Inc., and NOR Healthcare Systems Corp. (represented by Quinn Emanuel Urquhart & Sullivan, LLP) filed a civil complaint in the Superior Court of the State of California, County of Los Angeles, in the action styled Sarian v. Paronyan, No. 26STCV05675 (the "Sarian Complaint"). The Sarian Complaint is a public court record available through the California Courts' electronic filing system and through Trellis Law (https://trellis.law), Document ID 275559994. I obtained the text of the Sarian

Complaint through legal research using those sources. This document is not attached as a physical exhibit because I have been unable to obtain a certified or otherwise complete original PDF of the filing; judicial notice of the specific facts set forth below is sought in the accompanying Request for Judicial Notice.

5. The Sarian Complaint contains the following allegations, which bear directly on the citizenship of Defendant Healthcare Systems of America–Florida LLC. Paragraph 10 alleges: "Plaintiff Mike Sarian is an individual residing in Los Angeles County, California." Paragraph 13 alleges that "The Trust holds… 1,000 shares (100%) of Plaintiff Healthcare Systems of America Corp." and that the Sarian Family Trust is "a California trust with its principal place of administration in Los Angeles County." Paragraph 15 alleges: "Healthcare Systems of America Corp. ('HSA') is a Nevada corporation headquartered in Glendale, California. HSA owns and operates eight hospitals outside California. HSA is wholly owned by the Sarian Family Trust."

Declaration of Mike Sarian, Sarian v. Paronyan, No. 26STCV05675

6. Also filed February 24, 2026, in Sarian v. Paronyan, No. 26STCV05675, was the Declaration of Mike Sarian in Support of Plaintiffs' Ex Parte Application for a Temporary Restraining Order and Order to Show Cause re: Preliminary Injunction (the "Sarian Declaration"). The Sarian Declaration is a public court record available through the California Courts' electronic filing system and through Trellis Law (https://trellis.law), Document ID 275598793. I obtained the text of the Sarian Declaration through legal research using those sources. Like the Sarian Complaint, this document is not attached as a physical exhibit because I have been unable to obtain a certified or otherwise complete original PDF; judicial notice of the specific sworn statements set forth below is sought in the accompanying Request for Judicial Notice.

7. The Sarian Declaration was executed under penalty of perjury pursuant to California Code of Civil Procedure § 2015.5 and contains the following sworn statements bearing on the

citizenship of Defendant Healthcare Systems of America–Florida LLC. Paragraph 4 states: "I formed Healthcare Systems of America Corp. ('HSA') in September 2024 to pursue additional hospital acquisitions." Paragraph 6 states that Mike Sarian holds "100% of HSA." Paragraph 8 states: "Aramais Paronyan maintains minority ownership stakes in AHS (49%) and NOR (40%), and holds no ownership interest in HSA." Paragraph 11 states with respect to Faisal Gill: "He does not own shares in any of the companies." Paragraph 20 states: "Mr. Paronyan has never had any ownership interest or involvement in HSA."

Exhibit A — Complete Complaint, Maxfield v. Healthcare Systems of America–Florida LLC, No. 0:26-cv-61343-MD (S.D. Fla.)

8. Attached hereto as Exhibit A is a true and correct copy of the complete Complaint (Document 1, consisting of all seven (7) pages as filed) in Maxfield v. Healthcare Systems of America–Florida LLC, No. 0:26-cv-61343-MD, in the United States District Court for the Southern District of Florida, filed May 5, 2026. I obtained this document from the Court Listener RECAP federal court archive (courtlistener.com), which hosts a verbatim copy of the CM/ECF filing bearing the official FLSD docket header: "Case 0:26-cv-61343-MD Document 1 Entered on FLSD Docket 05/05/2026 Page 1 of 7." The Complaint was filed by Perera Law Group, P.A., counsel for plaintiff Christopher Maxfield.

9. Paragraph 7 of the Maxfield Complaint (Exhibit A, page 2) alleges: "HSAF is a foreign limited liability company registered to conduct business throughout the State of Florida." Paragraphs 5 and 6 of the same Complaint describe co-defendants HSA FMC LLC and HSA NSMC LLC as "Florida limited liability compan[ies] organized and existing under and by virtue of the laws of Florida," expressly distinguishing those entities from Defendant Healthcare Systems of America–Florida LLC, which is identified as a "foreign" LLC.

Exhibit B — Complete Answer and Affirmative Defenses, Maxfield v. Healthcare Systems of America–Florida LLC, No. 0:26-cv-61343-MD (S.D. Fla.)

10. Attached hereto as Exhibit B is a true and correct copy of the complete Answer and Affirmative Defenses of Defendants Healthcare Systems of America–Florida LLC, HSA NSMC LLC, and HSA FMC LLC (Document 14, consisting of all seven (7) pages as filed) in Maxfield v. Healthcare Systems of America–Florida LLC, No. 0:26-cv-61343-MD, in the United States District Court for the Southern District of Florida, filed June 11, 2026. I obtained this document from the CourtListener RECAP federal court archive (courtlistener.com), bearing the official FLSD docket header: "Case 0:26-cv-61343-MD Document 14 Entered on FLSD Docket 06/11/2026 Page 1 of 7."

11. Paragraph 7 of the Maxfield Answer (Exhibit B, page 2) states: "Defendants admit that HSAF is a limited liability company registered to do business in Florida." Defendants did not dispute in that Answer, and have not disputed in any public filing in this District, that Healthcare Systems of America–Florida LLC is organized under and by virtue of the laws of a state other than Florida.

I declare under penalty of perjury under the laws of the United States of America that the foregoing is true and correct.

Executed on June 22, 2026, at Miami, Florida.

Respectfully submitted,



RIGOBERTO CABRERA
Plaintiff, Pro Se
Federal Register No. 33513-018
Federal Correctional Institution Miami

15801 S.W. 137th Avenue
Miami, Florida 33177

EXHIBIT A

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA

CASE NO.

CHRISTOPHER MAXFIELD,

Plaintiff,

vs.

HEALTHCARE SYSTEMS OF AMERICA-FLORIDA LLC, D/B/A FLORIDA MEDICAL CENTER, HSA NSMC LLC D/B/A FLORIDA MEDICAL CENTER, and HSA FMC LLC D/B/A FLORIDA MEDICAL CENTER.

Defendants.
_____/

COMPLAINT

COMES NOW, Plaintiff, CHRISTOPHER MAXFIELD ("Plaintiff"), by and through undersigned counsel, and hereby files this Complaint against Defendants, Healthcare Systems of America-Florida LLC d/b/a Florida Medical Center ("HSAF"), HSA NSMC LLC d/b/a Florida Medical Center ("HSA NSMC"), and HSA FMC LLC d/b/a Florida Medical Center ("HSA FMC") (collectively referred to as "Defendants"), and as grounds therefore, states as follows:

INTRODUCTION

1. This action arises out of Defendants' failure to comply with their obligations under the Employee Retirement Income Security Act of 1974, codified as part of 29 U.S.C. § 1001, *et seq.* ("ERISA") as amended by the Consolidated Omnibus Budget Reconciliation Act of 1985 ("COBRA").

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JURISDICTION AND VENUE

2. This Honorable Court has jurisdiction pursuant to 28 U.S.C. § 1131, as this action arises under the laws of the United States, specifically, ERISA and COBRA.
3. Venue is proper pursuant to 28 U.S.C. § 1391, as a substantial part of the events or omissions giving rise to this action occurred in this judicial district.
4. Plaintiff was and is a resident of Broward County, Florida, over the age of eighteen, and was at all relevant times sui juris.
5. HSA FMC, is a Florida limited liability company, organized and existing under and by virtue of the laws of Florida. HSA FMC, at all times material hereto, conducted substantial and continuous business within Broward County.
6. HSA NSMC is a Florida limited liability company organized and existing under and by virtue of the laws of Florida. HSA NSMC, at all times material hereto, conducted substantial and continuous business within Broward County, and is subject to the laws of the United States and the State of Florida.
7. HSAF is a foreign limited liability company registered to conduct business throughout the State of Florida. HSAF, at all times material hereto, conducted substantial and continuous business within Broward County, and is subject to the laws of the United States and the State of Florida.
8. Defendants jointly owned, controlled, and operated the Hospital located at 5000 W. Oakland Park Boulevard, Lauderdale Lakes, Florida 33313 as a

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single integrated enterprise under the fictitious name "Florida Medical Center" (hereinafter referred to as "the Hospital").

9. Defendant HSA FMC employed Plaintiff, issued Plaintiff's paychecks, and maintained its principal business address at the Hospital.

10. At all relevant times, HSA NSMC owned and operated the Hospital where Plaintiff worked and was the registered licensee with the Florida Agency for Health Care Administration (AHCA) and was responsible for the Hospital's operational oversight.

11. At all relevant times, HSAF held a controlling interest in HSA NSMC and exercised control over the Hospital's governance, budgeting, and executive decision-making.

12. At all relevant times, Defendants held themselves out to employees, regulators, and the public under a common name and operated the Hospital as a single integrated enterprise.

13. Defendants acted as Plaintiff's joint employers, and collectively exercised control over Plaintiff's employment and the adverse actions alleged herein.

14. At all times relevant hereto, Defendants, individually and/or in combination employed at least twenty (20) or more employees on a typical business day during the preceding calendar year and were Plaintiff's "employer" within the meaning of 29 U.S. Code § 1002(5).

15. At all relevant times, Defendants employed Plaintiff and offered health insurance coverage through a group health plan ("the Plan").

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16. Plaintiff was a covered participant under the Plan. Both Plaintiff and Defendants contributed to the cost of coverage, and the Plan qualified as a group health plan subject to ERISA and COBRA.

17. Plaintiff is authorized to bring this action pursuant to 29 U.S.C. § 1132(a)(1)(A).

GENERAL ALLEGATIONS

18. Plaintiff began working for Defendants in January 2025 after Defendants acquired the Hospital where Plaintiff was employed.

19. On April 25, 2025, Defendants wrongfully terminated Plaintiff's employment and immediately discontinued his medical insurance benefits under the Plan.

20. Within a week of his termination, Plaintiff contacted Defendants' Human Resources Department to request information regarding his COBRA rights. Defendants failed to provide any information in response.

21. Plaintiff's termination constituted a qualifying event under 29 U.S.C. § 1163(2).

Defendants' Notice Obligations and Failure to Provide COBRA Notice

22. COBRA required Defendants to notify the plan administrator of Plaintiff's qualifying event within thirty (30) days of April 25, 2025. If Defendants were acting as the plan administrator, COBRA required them to provide Plaintiff with a COBRA election notice within forty-four (44) days of the qualifying event.

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23. Plaintiff was entitled to receive a COBRA election notice no later than June 8, 2025.

24. Defendants failed to notify the plan administrator of the qualifying event and/or failed to provide Plaintiff with the required COBRA election notice.

25. As a direct result, Plaintiff never received COBRA notice and was denied the opportunity to elect continuation coverage under the Plan.

COUNT I
FAILURE TO PROVIDE TIMELY NOTICE IN VIOLATION OF COBRA
(ALL DEFENDANTS)

26. Plaintiff restates and alleges Paragraphs 1 through 25 as if fully set forth herein.

27. COBRA required Defendants to notify the plan administrator of Plaintiff's qualifying event within thirty (30) days of April 25, 2025, or, if acting as the plan administrator, to provide Plaintiff with a COBRA election notice within forty-four (44) days of the qualifying event.

28. Defendants failed to comply with these statutory notice obligations within the required time period.

29. As a result of Defendants' failure to comply, Plaintiff did not receive notice of his right to elect continuation coverage under COBRA and was denied continuation coverage under the Plan.

30. Upon information and belief, Defendants have still not complied with their notice obligations as of the date of this Complaint, despite Plaintiff's multiple informal requests for COBRA information following his termination.

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31. Defendants are liable for civil penalties under 29 U.S.C. § 1132(c)(3). Plaintiff has suffered damages including medical expenses, replacement insurance costs, attorney's fees, and litigation costs.

WHEREFORE, Plaintiff respectfully requests that this Honorable Court, pursuant to 29 U.S.C. § 1132(c), award any and all relief that it deems just and proper, including but not limited to:

A. Reimbursement of all medical expenses incurred from the date of the qualifying event through present;

B. $100.00 per day from the date of such failure, along with the damages to be assessed against Defendants;

C. Prejudgment interest for Defendants' failure to notify the administrator of the "qualifying event," and/or failure to directly notify Plaintiff of his right to elect continuing coverage under COBRA;

D. Attorney's fees and costs of litigation; and

E. Any other equitable relief that this Court deems just and proper.

[SPACE INTENTIONALLY LEFT BLANK]

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DEMAND FOR JURY TRIAL

Plaintiff, Christopher Maxfield, demands trial by jury on all issues and all counts of this Complaint so triable.

Dated: May 5, 2026.

Respectfully submitted,

By: ***/s/ Nathaly Saavedra***
J. Freddy Perera, Esq.
Florida Bar No. 93625
Freddy@pba-law.com
Nathaly Saavedra, Esq.
Florida Bar No. 118315
Nathaly@pba-law.com
Felipe Gonzalez, Esq.
Florida Bar No. 1026023
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Attorneys for Plaintiff

EXHIBIT B

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA

CASE NO. 0:26-cv-61343-MD

CHRISTOPHER MAXFIELD,

Plaintiff,

v.

HEALTHCARE SYSTEMS OF AMERICA-FLORIDA LLC, d/b/a FLORIDA MEDICAL CENTER, HSA NSMC LLC d/b/a FLORIDA MEDICAL CENTER, and HSA FMC LLC d/b/a FLORIDA MEDICAL CENTER,

Defendants.
_____/

DEFENDANTS' ANSWER AND AFFIRMATIVE DEFENSES TO PLAINTIFF'S COMPLAINT

Defendants, Healthcare Systems of America-Florida LLC, d/b/a Florida Medical Center ("HSAF"); HSA NSMC LLC, d/b/a Florida Medical Center ("HSA NSMC"); and HSA FMC LLC, d/b/a Florida Medical Center ("HSA FMC") (collectively "Defendants"), by and through the undersigned attorneys, file this Answer and Affirmative Defenses to Plaintiff's Complaint and Demand for Jury Trial, and state as follows:

INTRODUCTION

1. Defendants admit Plaintiff is alleging claims under ERISA and COBRA. Defendants deny the remaining allegations in paragraph 1.

JURISDICTION AND VENUE

2. Paragraph 2 contains a jurisdictional allegation and conclusions of law to which no response is required. To the extent a response is required, Defendants deny the allegations in paragraph 2.

3. Paragraph 3 contains conclusions of law regarding venue to which no response is required. To the extent a response is required, Defendants deny the allegations in paragraph 3.

4. Defendants lack knowledge sufficient to admit or deny the allegations in paragraph 4.

5. Defendants admit that HSA FMC is a Florida limited liability company. Defendants deny the remaining allegations in paragraph 5.

6. Defendants admit that HSA NSMC is a Florida limited liability company. Defendants deny the remaining allegations in paragraph 6.

7. Defendants admit that HSAF is a limited liability company registered to do business in Florida. Defendants deny the remaining allegations in paragraph 7.

8. Defendants deny the allegations in paragraph 8.

9. Defendants admit that HSA FMC maintained its principal place of business at the Hospital. Defendants deny the remaining allegations in paragraph 9.

10. Defendants deny the allegations in paragraph 10, as phrased.

11. Defendants deny the allegations in paragraph 11.

12. Defendants deny the allegations in paragraph 12.

13. Defendants deny the allegations in paragraph 13.

14. Defendants deny the allegations in paragraph 14.

15. Defendants deny the allegations in paragraph 15, as phrased.

16. Defendants deny the allegations in paragraph 16, as phrased.

17. Paragraph 17 contains conclusions of law to which no response is required. To the extent a response is required, Defendants deny the allegations in paragraph 17.

GENERAL ALLEGATIONS

18. Defendants deny the allegations in paragraph 18, as phrased.

19. Defendants deny the allegations in paragraph 19.

20. Defendants deny the allegations in paragraph 20.

21. Paragraph 21 contains conclusions of law to which no response is required. To the extent a response is required, Defendants deny the allegations in paragraph 21.

22. Paragraph 22 contains conclusions of law to which no response is required. To the extent a response is required, Defendants deny the allegations in paragraph 22.

23. Paragraph 23 contains conclusions of law to which no response is required. To the extent a response is required, Defendants deny the allegations in paragraph 23.

24. Defendants deny the allegations in paragraph 24.

25. Defendants deny the allegations in paragraph 25.

COUNT I
FAILURE TO PROVIDE TIMELY NOTICE IN VIOLATION OF COBRA

26. Defendants repeat and reallege their responses to paragraphs 1 through 25.

27. Paragraph 27 contains conclusions of law to which no response is required. To the extent a response is required, Defendants deny the allegations in paragraph 27.

28. Defendants deny the allegations in paragraph 28.

29. Defendants deny the allegations in paragraph 29.

30. Defendants deny the allegations in paragraph 30.

31. Defendants deny the allegations in paragraph 31.

32. Defendants deny Plaintiff is entitled to any of the relief requested in the WHEREFORE clause of the Complaint, including subparts (A) through (E), or to any other relief whatsoever.

AFFIRMATIVE DEFENSES

1. Plaintiff's claim is barred because Plaintiff's employment was terminated by reason of Plaintiff's gross misconduct. Under 29 U.S.C. § 1163(2), a termination of employment by reason of the employee's gross misconduct is not a "qualifying event" under COBRA. Because no qualifying event occurred, no obligation to provide notice under 29 U.S.C. § 1166 arose, and Plaintiff is not entitled to statutory penalties under 29 U.S.C. § 1132(c) or any other relief.

2. Plaintiff's claim is barred, in whole or in part, by his failure to exhaust the administrative remedies available under the governing group health plan before filing suit.

3. Any recovery by Plaintiff of medical expenses or other monetary relief must be reduced and offset by: (a) the premium contributions Plaintiff would have been required to pay to maintain continuation coverage under 29 U.S.C. § 1162(3), in an amount up to 102 percent of the applicable premium for each month of coverage; and (b) all deductibles, copayments, coinsurance, exclusions, and limitations that would have applied to Plaintiff's claimed medical expenses under the terms of the governing group health plan had Plaintiff elected and maintained continuation coverage.

4. Plaintiff's claims for damages are barred, in whole or in part, by his failure to mitigate his damages, including without limitation his failure to obtain alternative health insurance coverage that was available to him through the Health Insurance Marketplace (including any special enrollment period triggered by his loss of coverage and any premium subsidies for which he qualified), through subsequent employment, or otherwise, and his failure to take reasonable steps to reduce the medical expenses he claims as damages.

5. Plaintiff lacks standing to pursue the claim, as he has not suffered any injury in fact or financial harm.

DEMAND FOR JURY TRIAL

Defendants demand a trial by jury of all issues so triable as of right by a jury.

Date: June 11, 2026

/s/ Carlos A. Garcia
Carlos A. Garcia, Esquire
Florida Bar No. 99768
WICKER SMITH O'HARA MCCOY & FORD, P.A.
Attorneys for Defendants
515 E. Las Olas Blvd., Suite 1400
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FTLcrtpleadings@wickersmith.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was filed with the Clerk of Court using the CM/ECF system on June 11, 2026, and the foregoing document is being served this day on all counsel or parties of record on the Service List below, either via transmission of Notices of Electronic Filing generated by CM/ECF or in some other authorized manner for those counsel or parties who are not authorized to receive Notices of Electronic Filing.

/s/ Carlos A. Garcia
Carlos A. Garcia, Esquire

SERVICE LIST

J. Freddy Perera, Esquire
Perera Law Group
12555 Orange Dr # 4107
Davie, FL 33330-4304
Telephone: (786) 485-5232
E-mail: freddy@pba-law.com

RIGOBERTO CABRERA,

Plaintiff,

v.

HEALTHCARE SYSTEMS OF AMERICA-FLORIDA LLC, d/b/a PALMETTO GENERAL HOSPITAL; HSA PGH, LLC, d/b/a PALMETTO GENERAL HOSPITAL; and JOHN DOE, an unidentified MRI Technologist,

Defendants.

_____/

Case No.:
1:26-cv-23693-MFE

PLAINTIFF'S REQUEST FOR JUDICIAL NOTICE

IN SUPPORT OF PLAINTIFF'S RESPONSE TO ORDER TO SHOW CAUSE

Pursuant to Federal Rule of Evidence 201(b) and 201(c)(2), Plaintiff Rigoberto Cabrera respectfully requests that the Court take judicial notice of the five public records identified below. Two of those records—the Maxfield Complaint and the Maxfield Answer—are attached as Exhibits A and B to Plaintiff's concurrently filed Declaration. The remaining three are publicly accessible government and court records whose contents are identified with specificity below. Each is a public record of a governmental agency or a judicial filing in a court of record whose accuracy and authenticity cannot reasonably be questioned.

LEGAL STANDARD

A court "must take judicial notice if a party requests it and the court is supplied with the necessary information." Fed. R. Evid. 201(c)(2). Judicial notice is appropriate of facts "not subject to reasonable dispute because [they] can be accurately and readily determined from sources whose accuracy cannot reasonably be questioned." Fed. R. Evid. 201(b)(2). Public records of government agencies satisfy this standard. See, e.g., Universal Express, Inc. v. U.S. S.E.C., 177 F. App'x 52, 53 (11th Cir. 2006) (per curiam) (taking judicial notice of SEC public records). Courts of appeals and district courts likewise routinely take judicial notice of filings in other judicial proceedings, including state and federal court records, for the fact that the filing was made and for the statements contained therein. See Horne v. Potter, 392 F. App'x 800, 802 (11th Cir. 2010) (judicial notice of documents in court's own files and other court records); United States ex rel. Osheroff v. Humana Inc., 776 F.3d 805, 811 n.4 (11th Cir. 2015) (judicial notice of state court complaint).

EXHIBITS

I. Florida Department of State — Entity Record for Healthcare Systems of America–Florida LLC

Fla. Dep't of State, Div. of Corps., Entity Records for Healthcare Systems of America–Florida LLC, Doc. No. M24000012582 (filed Oct. 2, 2024), https://search.sunbiz.org (last visited June 22, 2026).

Plaintiff requests that the Court take judicial notice that Healthcare Systems of America–Florida LLC is registered with the Florida Division of Corporations as a Nevada limited liability company (state of organization: NV), filed October 2, 2024, with a principal address of 505 North Brand Boulevard, Suite 1200, Glendale, California 91203, and a registered agent address in Miami, Florida. This is a public record of the Florida Department of State, a state government agency, maintained in an official searchable database.

II. Complaint, Sarian v. Paronyan, No. 26STCV05675 (Cal. Super. Ct., L.A. Cnty.)

Complaint, Sarian v. Paronyan, No. 26STCV05675 (Cal. Super. Ct., L.A. Cnty. Feb. 24, 2026) (Quinn Emanuel Urquhart & Sullivan, LLP for Plaintiffs).

Plaintiff requests that the Court take judicial notice that (1) this Complaint was filed in the Superior Court of the State of California, County of Los Angeles, on February 24, 2026; (2) Paragraph 10 states that "Plaintiff Mike Sarian is an individual residing in Los Angeles County, California"; (3) Paragraph 13 states that the Sarian Family Trust is a "California trust with its principal place of administration in Los Angeles County" and holds "1,000 shares (100%) of Plaintiff Healthcare Systems of America Corp."; and (4) Paragraph 15 states that "Healthcare Systems of America Corp.… is a Nevada corporation headquartered in Glendale, California[,] HSA owns and operates eight hospitals outside California[, and] HSA is wholly owned by the Sarian Family Trust." These are statements of record in a public court filing.

III. Declaration of Mike Sarian, Sarian v. Paronyan, No. 26STCV05675 (Cal. Super. Ct., L.A. Cnty.)

Declaration of Mike Sarian in Support of Plaintiffs' Ex Parte Application for a Temporary Restraining Order and Order to Show Cause Re: Preliminary Injunction ¶¶ 4, 6, 8, 11, 20, Sarian v. Paronyan, No. 26STCV05675 (Cal. Super. Ct., L.A. Cnty. Feb. 24, 2026).

Plaintiff requests that the Court take judicial notice that (1) this sworn declaration was filed under penalty of perjury in Los Angeles County Superior Court on February 24, 2026; (2) Paragraph 4 states: "I formed Healthcare Systems of America Corp. ('HSA') in September 2024 to pursue additional hospital acquisitions"; (3) Paragraph 6 states: "I am the CEO of all three companies and hold majority or sole ownership of each: 51% of AHS, 100% of HSA, and 60% of NOR"; (4) Paragraph 8 states: "Aramais Paronyan maintains minority ownership stakes in AHS (49%) and NOR (40%), and holds no ownership interest in HSA"; (5) Paragraph 11 states: "He [Gill] does not own shares in any of the companies"; and (6) Paragraph 20 states: "Mr. Paronyan has never had any ownership interest or involvement in HSA." These are statements of record in a public court filing.

IV. Complaint, Maxfield v. Healthcare Systems of America–Florida LLC, No. 0:26-cv-61343-MD (Exhibit A to Cabrera Declaration)

Complaint, Maxfield v. Healthcare Sys. of Am.–Fla. LLC, No. 0:26-cv-61343-MD (S.D. Fla. May 5, 2026) (Doc. 1) (Perera Law Group, P.A. for Plaintiff).

Plaintiff requests that the Court take judicial notice of this Complaint filed in the United States District Court for the Southern District of Florida, available on this Court's CM/ECF docket. Specifically, Plaintiff requests notice that Paragraph 7 states: "HSAF is a foreign limited liability company registered to conduct business throughout the State of Florida"; and that Paragraphs 5 and 6 describe co-defendants HSA FMC LLC and HSA NSMC LLC as "Florida limited liability compan[ies] organized and existing under and by virtue of the laws of Florida." The contrast between Paragraphs 5–6 (Florida entities) and Paragraph 7 (foreign entity) in the same filed pleading is a fact capable of accurate and ready determination from this Court's own records.

V. Answer and Affirmative Defenses, Maxfield v. Healthcare Systems of America–Florida LLC, No. 0:26-cv-61343-MD (Exhibit B to Cabrera Declaration)

Answer ¶ 7, Maxfield v. Healthcare Sys. of Am.–Fla. LLC, No. 0:26-cv-61343-MD (S.D. Fla. June 11, 2026) (Doc. 14).

Plaintiff requests that the Court take judicial notice of this Answer filed by Defendants' own retained counsel in the United States District Court for the Southern District of Florida, available on this Court's CM/ECF docket. Specifically, Plaintiff requests notice that Paragraph 7 states: "Defendants admit that HSAF is a limited liability company registered to do business in Florida." Defendants did not assert, and have not asserted in any public filing in this District, that Healthcare Systems of America–Florida LLC is organized under the laws of Florida. This is a statement of record in a public court filing in a live proceeding in this District.

CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court take judicial notice of: (I) the Florida Department of State entity record for Healthcare Systems of America–Florida LLC; (II) the Sarian complaint, Sarian v. Paronyan, No. 26STCV05675 (Cal. Super. Ct.); (III) the Sarian declaration filed in the same action; (IV) the complete Maxfield complaint (Exhibit A to the Cabrera Declaration); and (V) the complete Maxfield Answer (Exhibit B to the Cabrera Declaration)—as public records and judicial filings whose accuracy cannot reasonably be questioned, for the purpose of establishing the jurisdictional facts set forth in Plaintiff's Response to the Order to Show Cause and the First Amended Complaint.

Respectfully submitted,



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